

Part B

Banking, Finance, Accounting,
and Insurance

Bank for International Settlements

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I. *Introduction*

The Bank for International Settlements (BIS) was established in 1930 as an international organization primarily composed of member states from western capitalist economies and a few private shareholders. It was created to facilitate the German government's war reparation payments to the allied powers based on the terms of the Treaty of Versailles. Its other major function was to hold the gold reserves of most of the world's major economies and to serve as a meeting place for central bankers. During World War II, its role in acting as a payment agent for the German Nazi government resulted in proposals for its abolition at the war's end (Skidelsky 2000: 354). The BIS, however, survived and in the late 1940s and 1950s it took on a new important role in assisting the reconstruction of European economies by facilitating cross-border payments and exchange rate transactions. In the late 1950s, it also began serving as a venue for central bank governors and specialists to meet and discuss technical issues of central bank operations. Since the early 1960s, the G10 central bank governors have held many of their meetings at the BIS, and the G10's Basel Committee on Banking Supervision began holding meetings there in 1974. Although possessing much more limited powers than its sister organizations, the IMF and the World Bank, the BIS has provided the backdrop for some of the seminal negotiations on financial policy and regulation since the early 1970s: the Basel Concordats, the Basel Capital Accord and Basel II, and the Core Principles of Banking Supervision are the most well-known of the international financial standards, which leading central bankers and regulators have negotiated within the supportive confines of the BIS's premises in Basel, Switzerland. This entry will explain the main functions and purposes of the BIS and its governance and institutional structure and discuss some of the legal issues which have arisen in recent years regarding its operations.

II. *Origins, Development, and Membership*

The Bank for International Settlements was created in 1930 under the Hague Agreements and the Constituent Charter of the Bank for International Settlements of 1930. On 20 January 1930, the Governments of Germany, Belgium, the United Kingdom, Italy, Japan, and Switzerland concluded the Convention respecting the Bank for International Settlements at the Hague (Lowenfeld 2003: 662f). The BIS became operational on 17 May 1930. It was established in the context of the Young Plan, which dealt with the issue of the reparation payments imposed on Germany by the Treaty of Versailles following the First World War. The new bank, which was granted international legal personality under its Constituent Charter, was intended to assume the functions previously performed by the Agent General for Reparations in Berlin. These functions included collection, administration, and distribution of the reparation annuities payable by the German government to the victorious allied powers as required under the Treaty of Versailles. Article 4 of the original Statutes, which was abrogated in 1969 (long after it ceased being a relevant responsibility of the Bank), states that the main reason for creating the Bank was the management of the Young Plan, which was a major international problem at the time.

During the Bretton Woods negotiations in 1944, US Secretary of the Treasury Henry Morgenthau led calls for the abolition of the BIS because of its wartime involvement with the German government (Skidelsky 2000: 354). US officials were able to persuade other allied government to agree to transfer all of the BIS's powers and operational functions to the newly-established International Monetary Fund which would be located in Washington D.C. and subject to greater US political control. When the war ended, however, the mood among the allied powers changed as the British government with the support of the Dutch government sought to keep the BIS because of its European base and its crucial experience in functioning as a payment agent between European central banks and as a gold depository for its membership. The BIS therefore survived and maintained – and later expanded upon – its operational functions and moreover played an important role in rebuilding the financial systems of the western European economies following the war. For instance, one of its duties in the postwar period was to act as the agent for the European Payments Union between 1950–58 by helping to restore the convertibility of western European currencies after the Second World War.

In recent years, it has been called the central banker's central bank because it holds a large portion of the world's gold reserves on behalf of its member central banks at its fortified headquarters in Basel, Switzerland. In the 1970s, its functions shifted to cooperation among central banks and other agencies

in pursuit of monetary and financial stability. As discussed in more detail, it began serving as a venue for the meetings of the world's leading bank regulators and used its good offices to house the secretariat for the Basel Committee on Banking Supervision and the other G10 standard setting committees. From 1979–94 the BIS again played a crucial role in the process leading to the European Financial and Monetary Union, acting first as the agent for various European exchange rate arrangements and later for the European Monetary System (EMS) which led to a single currency, the Euro.

An important aspect of BIS membership has been the ability of members to file claims against the BIS itself as a corporate entity or against other members. Claims resolution is governed by a detailed dispute resolution mechanism. As a general matter, disputes involving an international organization must be resolved in the first instance according to the rules and laws set out in the legal instruments that create the international organization provided there is no violation of international *jus cogens* norms. Article XV of the 1930 Hague Agreement created the procedures for establishing a BIS Tribunal that would have the authority to hear any dispute of shareholders and the BIS involving the interpretation of the Hague Agreement or the BIS Charter or Statutes. Article 54(1) of the Statutes provides as follows:

If any dispute shall arise between the Bank, on the one side, and any central bank, financial institution, or other bank referred to in the present Statutes, on the other side, or between the Bank and its shareholders, with regard to the interpretation or application of the Statutes of the Bank, the same shall be referred for final decision to the Tribunal provided for by the Hague Agreement of 1930.

Article XV's original terms provided that the Governments of Belgium, France, Germany, Italy and the United Kingdom would appoint five members of the Tribunal for terms of five years each. The Government of France, in agreement with the Governments of Belgium, Italy, and the United Kingdom, designated the Chairman of the Tribunal. Today, Article XV permits nationals of any BIS member to be appointed to a dispute resolution tribunal.

The Tribunal's procedures are set out in Annex XII of the 1930 Hague Agreement, which incorporates Chapter III of the Hague Convention of 1907 for the Pacific Settlement of International Disputes (except as modified by the 1930 Hague Agreement). If a dispute occurs, Article 15 of the 1930 Agreement contains no explicit choice of law clause, nor does Annex XII of the 1930 Agreement contain an explicit choice of law clause. But Annex XII does incorporate, by reference to Chapter III of the Hague Convention of 1907, whose provisions are to apply, unless and to the extent modified by the provisions of Annex XII of the 1930 Agreement.

The dispute resolution mechanism was tested in *Claimants v. BIS*, an important case involving the claims of private shareholders of the BIS against the

Bank for its compulsory purchase of its shares in 2001 for what the claimants believed was an inadequate amount of compensation. In 2001, a tribunal was appointed to hear the claims of three private shareholders who were subject to a compulsory repurchase of their shares by the BIS. The Tribunal consisted of lawyers from the United States, Germany, Switzerland, France, and the Netherlands. The main legal issues in dispute were whether the BIS had the power under the 1930 Hague Agreement and the BIS Statute to make a compulsory repurchase of shares belonging to a shareholder and, if so, what valuation method was required to value the shares for repurchase purposes. In 2002, the BIS Tribunal ruled that the BIS could compulsorily redeem the shares held by private shareholders but must pay a price that reflects the net asset value of the shares as that relates to the earnings of the BIS as a going concern and excluding the value of its real estate.

Another important issue addressed by the Tribunal in the case was the applicable law to be applied to disputes between BIS shareholders and the BIS. Generally, international law holds that if the international organization's governing instruments do not address the specific issue in dispute, then a court or tribunal may resort to the principles and rules of public international law. The BIS has always taken the view that because it is an international organization, issues implicating its organic principles or internal governance, such as the relationship of the Bank to its shareholders are necessarily governed by public international law. In *Claimants v. BIS*, the Tribunal addressed this issue and ruled that the Constituent Instruments of the BIS constituted a *lex specialis* as between the parties. Insofar as the *lex specialis* in that case provided an answer to the issues in dispute, the Tribunal would not be permitted to turn to international law – unless the *lex specialis* purported to incorporate an explicit *renvoi* to general international law or would have violated a fundamental principle (*jus cogens*) of international law.

In *Claimants v BIS*, the Tribunal concluded that the *lex specialis* of the case was the 1930 Agreement, the BIS Charter and Statutes, all of which were conceived as self-contained and not incorporating general international law, except insofar as the *lex specialis* failed to provide an answer to a question that might arise or which violated a fundamental *jus cogens* norm of international law. In such a situation, a Tribunal should apply general international law, but in the specific case the applicable law was held to be the treaty establishing the BIS and its constituent charter and statutes. As it turned out in the case, the determination of the choice of law for determining if the BIS had the power to conduct a compulsory repurchase of shares and the valuation to be applied to the shares for compensation purposes was an important issue for ascertaining the level of compensation to be paid.

III. *Organizational Structure and Financing*

The Convention establishing the BIS contains a Constituent Charter establishing the Bank and its Statutes governing its operations (hereafter the 'Convention', the 'Constituent Charter', and 'the Statutes of the Bank'). The BIS was organized by Article I of the Statutes as 'a Company limited by shares' and its objects according to Article 3 were to promote the co-operation of central banks and to provide additional facilities for international financial operations; and to act as a trustee or agent in regard to international financial settlements entrusted to it under agreements with the parties concerned.

Moreover, the Statutes of the Bank comprise 58 articles. The requirements for amending the Statutes are contained in Article 57 (the substance of which has not changed since 1930), which states:

Amendments of any Articles of these Statutes other than those enumerated in Article 58 may be proposed by a two-thirds majority of the Board to the General Meeting and if adopted by a majority of the General Meeting shall come into force, provided that such amendments are not inconsistent with the provisions of the articles enumerated in Article 58.

The BIS has been held to be an international organization, as that term is defined in public international law. The BIS has referred to a number of international legal instruments that support the view that it has international legal personality: these instruments include the Headquarters Agreement with Switzerland of 1987, the Host Country Agreement between the Bank and the People's Republic of China of 1998, and the Host Country Agreement with Mexico of 2002.

The original Statutes of the Bank provided an invitation to states seeking to join the BIS and to private investors to subscribe to capital in the Bank. In doing so, Article 10 of the Statutes prescribed that "consideration shall be given by the Board [of Directors of the Bank] to the desirability of associating with the Bank the largest possible number of central banks." Article 10 of the Statutes prescribed that "consideration shall be given by the Board to the desirability of associating with the Bank the largest possible number of central banks". The shares did not convey any rights to the governance of the Bank. To this effect, Article 15 of the Statutes provides in relevant part:

The ownership of shares of the Bank carries no right of voting or representation at the General Meeting. The right of representation and of voting, in proportion to the number of shares subscribed by each country, may be exercised by the central bank of that country or by its nominee.

Some of the central banks were not, at the time of the Bank's founding, in a position to subscribe and hold shares because of the financial burden imposed

by World War I on state finances which limited the ability of most potential state members to pay for the acquisition and holding of the shares. Accordingly, Article 16 of the Statutes stated that “[a]ny subscribing institution or banking group may issue, or cause to be issued to the public the shares which it has subscribed”. Following this option, the United States Federal Reserve, the French Central Bank, and the Belgian Central Bank issued all or some of the shares which they had subscribed for sale to private parties. At the time of the founding of the BIS, “a substituted part of [the] shareholdings” were held by private parties (Schloss 40). French-issued shares were traded on the Paris *marché au comptant*; Belgian and US shares were traded on the Zurich *Nebensegment/marche* annex.

As of 2000, there were 529,165 shares of the Bank in issue of which 72,648 were held by private shareholders, the privately-held shares amounting to 13.73 percent of the BIS’s shares. In 2001, the Board of Directors of the BIS adopted a resolution at an extraordinary general meeting of the BIS that would restrict in the future the right to hold shares in the Bank to central banks *only*. Controversially, the Bank passed a resolution at an extraordinary general meeting of the Bank in January 2001 to amend the Statutes so as to purchase compulsorily the shares held by private shareholders against payment of compensation of CHF 16,000, an amount which the BIS Board stated constituted a fair value compensation for their shares: the amount represented a premium of 95 percent for the US shares, 105 percent for the Belgian shares, and 155 percent for the French shares. The BIS action had the effect of compulsorily repurchasing the shares held by the private shareholders and eliminating all private shareholders from the BIS ownership register. The amount of compensation was disputed by three private shareholders who filed a claim against the BIS in 2001 and later requested an arbitration tribunal to hear their claims at the Permanent Court of Arbitration at the Hague. The case will be discussed in the next section.

The BIS’s shares are owned solely by its member state central banks, but some central banks have larger ownership interests than others. It should be emphasised that voting for nominees to the Board of Directors of the BIS is based on one central bank/member state, one vote. Voting power is not related to the amount of shares owned. In that sense, the BIS governing board is selected based on the one state, one vote approach, and not according to which country’s central bank owns the most shares.

Moreover, the BIS also holds a portion of the gold reserves for its member central banks. The BIS’s currency of account was the gold franc until 2003 when its constituent charter was amended to replace the gold franc standard with the special drawing rights (SDR). SDR is the unit of account for BIS borrowing, lending and other bank-related activities today. The SDR represents

the value of a basket of currencies, whereby the individual weight within the basket is calculated based on that specific currency's relative importance in the world's trading and financial system. The advantage of the SDR unit of account is that it is used by the IMF in private contracts and other international treaties.

IV. *The Role of the BIS in Transnational Economic Governance*

The Bank's main objects include promoting co-operation among central banks, providing additional facilities for international liquidity operations, acting as trustee or agent in settling payments between central banks and other large transactions between member governments, including the performance of traditional banking and exchange rate functions for its members and employees, and also acting as an agent in gold transactions. This mission of international cooperation is an important one which was enshrined in Article 3 of the Bank's original Statutes (which remain unchanged) in which the bank's objects are set out as follows:

The objects of the Bank are: to promote the co-operation of central banks and to provide additional facilities for international financial operations; and to act as trustee or agent in regard to international financial settlements entrusted to it under agreements with the parties concerned.

In addition, the BIS website states that it aims to promote monetary and financial stability, to serve as a forum for discussion and dialogue among central banks and the financial community, and to act as a central bank to central bankers. In this respect, one of its most important functions is serving as a venue for the meetings of international financial standard setting bodies, such as the Basel Committee on Banking Supervision, the Committee on Payment and Settlement Systems, the Committee on Global Financial Systems, and the International Association of Insurance Supervisors. Indeed, in this capacity, it provides administrative support, research, a secretariat and its good offices for the meetings of these international standard setting bodies. But it should be realized that the BIS is not responsible for the international financial standards that are produced by these international bodies. The G10 central bank governors and designated regulatory bodies of the G10 countries are responsible for these international standards, not the BIS. In other words, the phrase 'BIS standard setting committees' should not be used – as it so often is in the literature – to describe the G10 central bank committees because the BIS is not the standard setting body. The BIS has more limited responsibilities that relate to its operations as a central bank for its 58 member countries, which although including the G10 countries,

does not include their financial standard setting activities. For instance, the Basel Committee on Banking Supervision is responsible for the Basel Capital Accord and its amended version Basel II, not the Bank for International Settlements. Nevertheless, there is a close relationship in an administrative and operational sense between the BIS and the international standard setting bodies that have offices at the BIS. For instance, the members of the secretariat of these international bodies are employed by the BIS.

In this sense, the BIS has been characterised as having few formal responsibilities that relate to economic policy and regulatory practice, but it has served as an important source of information and research which has significantly influenced international financial standard setting bodies and central bankers in their operations and policies. Indeed, the BIS's research and analysis mainly examines macroeconomic developments as they relate to financial markets; it also collects proprietary data on banking and financial institutions which cannot be publicly disclosed but can assist policymakers and regulators in assessing market trends and the impact of regulation. Its research role has had a substantial impact on domestic financial regulation and monetary policy because of its provision of key statistics, and its annual and quarterly reports play an important role in providing central banks and regulators with a global perspective on financial markets. For instance, BIS quarterly reports are widely used by national economic policymakers and regulators to forecast financial market trends and to analyze ongoing market and institutional developments.

The BIS's research function has exerted significant influence on the regulatory policy debate surrounding the credit crisis of 2007–08. In its quarterly report of August 2008, the BIS analysed the pricing of credit default swaps and related liquidity measures during the credit crisis of 2007–08 by referencing a widely used measure of the subprime mortgage market called the ABX. The ABX is an index that tracks the value of securities backed by subprime loans. These securities ceased trading in August 2007 when the credit crunch began and the market has remained illiquid as of September 2008 as investors have refused to invest in asset-backed securities because of their link with US subprime loans. With the securities not trading, the ABX receives its direction for valuing these securities by referencing the value of credit default swaps. Credit default swaps (CDSs) are actively traded instruments that insure against default on referenced assets, which are in this case the asset-backed securities linked to subprime loans. The ABX is often used as a proxy for the value of mortgage-backed securities because these securities cannot be priced in markets in which liquidity has virtually disappeared. For example, UBS AG, the largest non-US investment bank, used the ABX index in 2007 to assist it in calculating a further write-down of USD 10 billion on its investments in US subprime assets.

The ABX suffered a sharp decline beginning in the summer of 2007, which was largely attributed at the time to an increase in defaults on mortgages in the US housing market. The BIS, however, reported in August 2008 that, although the deterioration in the US housing market had contributed to a decline in the ABX, it also stated significantly that “declining risk appetite and rising concerns about market illiquidity have provided a sizeable contribution to the observed collapse in ABX prices”. The BIS report further stated that ABX indexes that track highly rated securities, such as those with triple-A ratings, were particularly sensitive to investors’ fears that had little to do with default risk. The report suggests that investors are using indices “as a macro hedge or to express negative trading views on the US housing market”. Similarly, a BIS study in June 2008 suggested that estimates of triple-A subprime securities losses that reference the ABX could be overstated by as much as 65 percent because the index only references part of the capital structure of the underlying referenced transactions.

The BIS report on the ABX has had a significant impact in reshaping the policy debate over the causes of the credit crisis by supporting the view of previous academic research that most of the collapse in prices of asset-backed securities has arisen from liquidity problems in the overall credit markets, and less from a deterioration in the US mortgage markets.

Finally, the BIS ability to offer its good offices to facilitate negotiations among regulators and central bankers has been crucial in designing stabilization programmes to address some of the problems posed by financial crises in recent years, including its administrative and research support for the work of the Financial Stability Forum, which has played a high profile role in addressing some of the regulatory weaknesses and market problems that have arisen in the 2007–2008 credit crisis. The BIS thus provides an institutional framework not only for central banks but also for other financial and regulatory authorities, whether they are supervisory, standard setting or rule-making, governmental or delegated to the private sector.

V. Trends and Challenges

The Bank for International Settlements exercises important functions that include providing a forum for cooperation between the world’s central banks and additional facilities for international payments between member central banks and some large non-state financial institutions and their counterparties. It is probably best known for serving as a venue for regulatory policy negotiations between the G10 central banks and other large emerging market countries and has often been confused for the Committees that conduct these negotiations. Its role is viewed as one of discretion and trust to its

member central banks in performing delicate operations involving the management of a large portion of the gold reserves belonging to central banks and other financial functions. Nevertheless, its powers are far more limited than other international economic organizations, such as the International Monetary Fund or the World Bank. These more limited functions, however, are carried out with high levels of expertise and competence. Its research and publication functions have added important insights and understanding to the causes of financial crises and suggested policy options. Although the BIS is not directly involved in international financial standard setting, it provides important administrative and research support for the IFIs and an important venue that allows central bankers and regulators to devise international standards of best practice out of the limelight of high politics and economic policy. In that sense, the Bank performs an important role in facilitating global financial governance and in providing a means for central banks to conduct their monetary and financial operations. Finally, its dispute resolution mechanism relies on arbitration to resolve any disputes between its member central banks and applies as its *lex specialis* the Bank's founding treaty, Charter and constituent Statutes for ascertaining what duties its members owe and their liability for breach of these international legal instruments. The BIS has proved to be effective in performing its specified functions and has successfully refused to become engaged in wider economic policy issues that could potentially involve it in broader international political disputes which could possibly undermine its effectiveness. Its preference for discretion in its operations and avoiding the media limelight has resulted in it exercising influence in the international financial arena that far exceeds its actual legal mandate.

Bibliography

Michael Akehurst, Custom as Source of International Law, in Martti Koskenniemi (ed.), *Sources of International Law*, Aldershot/Burlington, 2000, 251–303; Alexander T. Aleinikoff, International Law, Sovereignty and American Constitutionalism: Reflections on the Customary International Law Debate, *American Journal of International Law*, vol. 98, no. 1 (January 2004), 91–108, Mahmood Bagheri and Nakajima Chizu, Optimal Level of Financial Regulation under the GATS: A Regulatory Competition and Cooperation Framework for Capital Adequacy and Disclosure of Information, *Journal of International Economic Law*, vol. 5, no. 2 (2002), 507–30; Johannes Bärmann, Pacta Sunt Servanda: Considérations Sur L'histoire Du Contrat Consensuel, *Revue Internationale de Droit Comparé* (1961), 18–53, Alvin LeRoy Bennett, *International Organizations: Principles and Issues* (6th ed.), Englewood Cliffs, 1996; Suzanne Berger and Ronald Dore, *National Diversity and Global Capitalism*, Ithaca, 1996, Andrew Crockett, Progress Towards Greater International Financial Stability, in David Vines and Christopher L. Gilbert (eds.), *The IMF and its Critics: Reform of Global Financial Archi-*

ecture, Cambridge, 2004; Kenneth W. Dam, Introduction, in Werner F. Ebke and Joseph J. Norton (eds.), *Festschrift in Honor of Sir Joseph Gold*, Heidelberg, 1990; Peter Dombrowski, Haute Finance and High Theory: Recent Scholarship on Global Financial Relations, *Mershon International Studies Review*, vol. 42 (1998), 1–28; John Eatwell and Lance Taylor, *Global Finance at Risk: The Case for International Regulation*, New York, 2000; M.D. Ebert, The Asian Financial Crisis and the Need for a New Global Financial Architecture, *Butterworth's Journal of International Banking and Financial Law* (1998), 462; Ross Garnaut, Reflections on Capital Mobility and Domestic Stability, in Dipak Dasgupta, Marc Uzan, and Dominic Wilson (eds.), *Capital Flows without Crisis? Reconciling Capital Mobility and Economic Stability*, London, 2001; Mario Giovanoli, A New Architecture for the Global Financial Market: Legal Aspects of International Financial Standard Setting, in Mario Giovanoli, *International Monetary Law: Issue for the New Millennium*, Oxford, 2000; Joseph Gold, *The Fund Agreement in the Courts: Some Problems of the Uniform Interpretation of Multilateral Treaties*, vol. IV, Washington, D.C., 1989; Stephen Grenville, Financial Crisis and Globalisation, in Dipak Dasgupta, Marc Uzan, and Dominic Wilson (eds.), *Capital Flows without Crisis? Reconciling Capital Mobility and Economic Stability*, London, 2001; R.Y. Jennings, What Is International Law and How Do We Tell When We See It?, *Annuaire Suisse de Droit International* (1981), 31, 59–88; P.J.G. Kapteyn, P. Verlooren van Themaat, and Laurence W. Gormley, Introduction to the Law of the European Communities: From Maastricht to Amsterdam (3rd ed.), London, 1998; Hans Kelsen, in Robert W. Tucker (ed.), *Principles of International Law*, (2nd ed.), New York, 1967; Malcolm Knight, Lawrence Schembri, and James Powell, Reforming the Global Financial Architecture: Just Tinkering around the Edges?, in David Vines and Christopher L. Gilbert (eds.), *The IMF and Its Critics: Reform of Global Financial Architecture*, Cambridge, 2004, 124–55; Andreas F. Lowenfeld, *International Economic Law*, Oxford, 2003; Peter Malanczuk, *Akehurst's Modern Introduction to International Law* (7th rev. ed.), London/New York, 1997; Laurence H. Meyer, Brian M. Doyle, Joseph E. Gagnon, and Dale W. Henderson, International Coordination of Macroeconomic Policies: Still Alive in the New Millennium?, in David Vines and Christopher L. Gilbert (eds.), *The IMF and Its Critics: Reform of Global Financial Architecture*, Cambridge, 2004; Joseph J. Norton, The Multidimensions of the Convergence Processes Regarding the Prudential Supervision of International Banking Activities: The Impact of the Basel Supervisors Committee's Efforts Upon, Within and Without the European Community, in Werner F. Ebke and Joseph J. Norton (eds.), *Festschrift in Honor of Sir Joseph Gold*, Heidelberg, 1990; Henry G. Schermers and Niels M. Blokker, *International Institutional Law*, The Hague, 1995; Ignaz Seidl-Hohenveldern, *International Economic Law* (2nd rev. ed.), Dordrecht, 1992; Henry H. Schloss, *The Bank for International Settlements*, Amsterdam, 1958; Ignaz Seidl-Hohenveldern and Gerhard Loibl, *Das Recht Der Internationalen Organisationen Einschliesslich Der Supranationalen Gemeinschaften* (6th revised ed.), Cologne, 1996; Robert Skidelsky, *John Maynard Keynes*, Basingstoke, 2000; Stephen Zamora and Sir Joseph Gold, Development of International Monetary Law, in Werner F. Ebke and Joseph J. Norton, *Festschrift in Honor of Sir Joseph Gold*, Heidelberg, 1990.

International Arbitration Decisions

Dr. Horst Reineccius, (Claim No. 1), First Eagle SoGen Funds, Inc. (Claim No. 2), Mr. Pierre Mathieu and La Societe De Concours Hippique de La Charite (Claim No. 3) v. Bank for International Settlements, Respondent, Partial Award of the Lawfulness of the Recall of the Privately-Held Shares on 8 January 2001 and the applicable standards of for valuation of those shares' (The Hague, 22 November 2002).

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